CCTV at work: privacy notice for employees and visitors

A two-layer draft for workplace CCTV: the sign at the entrance and the full privacy notice, with what to check first in Italy and in Germany. For a DPO, HR manager or business owner who needs a working draft.

FOR

Private employers in Italy or Germany that run CCTV at a workplace filming employees, visitors or both, and the DPO, HR manager or owner who drafts the notice.

NOT COVERED

Public bodies (other legal bases and, in Germany, state law apply). Hidden cameras, body cameras, dashcams, cameras with sound, and smart or face-recognition cameras. Cameras for purely personal or household use. Countries other than Italy and Germany. The notice text is in English and needs translating for staff and visitors. Not confirmed, so left out: the Italian INL authorisation forms and the content of INL note 299 of 28 November 2017 on anti-theft systems; whether the 2010 Garante provision still applies in full after the GDPR; whether German regulators other than Hesse share the Hesse view on section 26 BDSG after case C-34/21; the weight courts give to INL circulars; German court rulings on workplace CCTV.

LAW AS OF

GDPR as in force on 7 Nov 2026 (EUR-Lex consolidated text, Fino copy); Law 300/1970 Art. 4 as in force since 8 Oct 2016, Codice privacy Arts. 114 and 171 as in force since 19 Sep 2018 (Normattiva, read 7 Nov 2026); BDSG §§ 4 and 26 and BetrVG § 87 (gesetze-im-internet.de, read 7 Nov 2026); EDPB Guidelines 3/2019 version 2.0 of 29 Jan 2020; Garante FAQ on video surveillance (web page read 7 Nov 2026), video surveillance provision of 8 Apr 2010, DPIA list provision 467 of 11 Oct 2018, decision of 28 May 2026 (doc. web 10259916); INL circular 5 of 19 Feb 2018; DSK Orientierungshilfe Videoüberwachung (as of 17 Jul 2020), DSK Kurzpapier 15 (as of 17 Dec 2018); HBDI Handreichung of 25 Apr 2023; state sign models of Saxony, Saxony-Anhalt and Bavaria (undated, downloaded 7 Nov 2026).

VERSION

1.0, 7 November 2026

How this document works

This is a working draft of the information an employer gives when it runs CCTV (video surveillance cameras) at a workplace. It has two layers. The first layer is a sign at the entrance to the filmed area. The second layer is the full privacy notice, which gives every item that Article 13 of the GDPR lists. The GDPR is the EU General Data Protection Regulation. Article 13 says what a person must be told when data about them are collected from them, and cameras collect data by observation.

The European Data Protection Board (EDPB), the body of all EU data protection regulators, describes this layered approach: *"the most important information should be displayed on the warning sign itself (first layer) while the further mandatory details may be provided by other means (second layer)"* (EDPB Guidelines 3/2019, paragraph 111).

The document has three parts: what to check before the notice matters, the sign, and the full notice. Where Italy and Germany differ, the text is split into a section for each country.

Fill in every field in braces. Delete any clause that does not apply, and say why in your own file. A notice never makes unlawful filming lawful.

Part 1. Check before you switch on the cameras

Check before you switch on the cameras

A sign and a notice are not enough on their own. The German regulators say it plainly: *"Allein das Aufstellen einer geeigneten Beschilderung führt nicht zur Zulässigkeit einer ansonsten rechtswidrigen Videoüberwachung"* (DSK, Orientierungshilfe Videoüberwachung, section 3.3) (putting up a sign does not make otherwise unlawful surveillance lawful). **Italy:** cameras that can also monitor workers need a union agreement or the labour inspectorate's authorisation first, under Article 4 of the Workers' Statute (Law 300/1970). **Germany:** where there is a works council, it has a right of co-determination before the cameras are introduced (section 87(1) no. 6 of the Works Constitution Act). **Both:** check whether a data protection impact assessment (DPIA, a written risk assessment under Article 35 GDPR) is required. The details for each country follow.

ITALY

Italy: before the cameras go on

In Italy the privacy rules and the labour rules both apply. The Workers' Statute (Statuto dei lavoratori, Law 300 of 20 May 1970) sets the labour rule in its Article 4. That article was rewritten by Legislative Decree 151/2015 (Article 23) and amended again by Legislative Decree 185/2016; the text below is the one in force since 8 October 2016 (Normattiva).

Article 4(1) says that cameras and other tools that can also monitor workers at a distance *"possono essere impiegati esclusivamente per esigenze organizzative e produttive, per la sicurezza del lavoro e per la tutela del patrimonio aziendale"* (Law 300/1970, Art. 4(1)) (may be used only for organisational and production needs, safety at work and protection of company assets). They may be installed after a collective agreement with the workplace union representatives (the RSU, *rappresentanza sindacale unitaria*, or the RSA, *rappresentanze sindacali aziendali*). Where the firm has sites in different provinces of one region or in several regions, the agreement may instead be signed by the comparatively most representative unions at national level. Without an agreement, the employer needs the authorisation of the local office of the National Labour Inspectorate (Ispettorato nazionale del lavoro, INL), or of its central office when the sites fall under several local offices.

The privacy code links the two. Article 114 of the Italian privacy code (Legislative Decree 196/2003) reads in full: *"Resta fermo quanto disposto dall'articolo 4 della legge 20 maggio 1970, n. 300"* (Codice privacy, Art. 114) (Article 4 of Law 300/1970 remains in force). In a 2026 decision the Garante, the Italian regulator, said that complying with Articles 4 and 8 of the Statute *"costituisce una condizione di liceità del trattamento"* (Garante, decision of 28 May 2026, doc. web 10259916) (is a condition for the processing to be lawful). Breaking Article 4(1) is also a criminal offence: Article 171 of the privacy code applies the penalties of Article 38 of the Statute.

LINE	WHAT IT SAYS	YES	NO	?
Art. 4(1) Law 300/1970 Statuto dei lavoratori, Art. 4(1)	The purpose of each camera is one of the three the law allows: organisational and production needs, safety at work, or protection of company assets.	☐	☐	☐
Art. 4(1) Law 300/1970 Statuto dei lavoratori, Art. 4(1)	A collective agreement with the RSU or RSA (or, for firms with sites in several provinces or regions, the comparatively most representative unions at national level) is signed, or the INL has authorised the installation. The agreement or authorisation is on file with its date and reference.	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
Art. 4(1); 2026/IT/146 Fino decision 2026/IT/146	The cameras actually installed (number, position, remote viewing) match what the agreement or authorisation allows. The Garante fined an employer whose cameras did not match what was agreed with the unions.	☐	☐	☐
Garante FAQ 16 Garante, FAQ on video surveillance	At work, the Article 4 safeguards apply even to dummy or switched-off cameras, although the GDPR itself does not apply to them, because they process no data. The Garante says that in the work context *"trovano comunque applicazione le garanzie previste dall'art. 4 della l. 300/1970"* (Garante FAQ on video surveillance, no. 16).	☐	☐	☐
Garante 2010, point 4.1 Garante, video surveillance provision of 8 April 2010	No camera is aimed at checking working hours or how well people work, for example a camera on the badge reader. The Garante's 2010 provision says filming must not be done *"al fine di verificare l´osservanza dei doveri di diligenza stabiliti per il rispetto dell´orario di lavoro e la correttezza nell´esecuzione della prestazione lavorativa"* (Garante, provision of 8 April 2010, point 4.1). This provision predates the GDPR and the 2015 rewrite of Article 4.	☐	☐	☐
INL circular 5/2018 INL, circular 5/2018	Live viewing from a remote place (for example on a phone) is used only if the agreement or authorisation allows it. The labour inspectorate tells its offices that remote live access *"deve essere autorizzato solo in casi eccezionali debitamente motivati"* (INL circular 5 of 19 February 2018).	☐	☐	☐
INL circular 5/2018 INL, circular 5/2018	Access to recorded images is logged. The same circular asks for access logs kept *"per un congruo periodo, non inferiore a sei mesi"* (INL circular 5/2018) (for a suitable period of at least six months).	☐	☐	☐
INL circular 5/2018 INL, circular 5/2018	Outdoor places where staff work now and then, such as loading bays, are included. The circular reports that the courts tend to include places *"dove venga svolta attività lavorativa in modo saltuario o occasionale (ad es. zone di carico e scarico merci)"* (INL circular 5/2018).	☐	☐	☐
Garante list, item 5 Garante, DPIA list (provision 467/2018), item 5	A DPIA has been done or screened. Item 5 of the Garante's list of processing that needs a DPIA covers technology at work *"anche con riguardo ai sistemi di videosorveglianza e di geolocalizzazione"* (Garante, Allegato 1 to provision 467 of 11 October 2018, item 5) from which remote monitoring of employees can follow.	☐	☐	☐
Art. 4(3) Law 300/1970 Statuto dei lavoratori, Art. 4(3)	Workers have been given the information in Part 3 before the cameras go on, including how the cameras are used and how checks are made (Article 4(3)).	☐	☐	☐

The INL circular is guidance from the inspectorate to its own offices. Fino has not checked how much weight courts give it.

The Garante also confirms that no permit from the privacy regulator itself is needed: *"Non è prevista alcuna autorizzazione da parte del Garante per installare tali sistemi"* (Garante FAQ no. 2). The employer assesses lawfulness and proportionality itself.

GERMANY

Germany: before the cameras go on

In Germany three questions come first: which legal basis applies, whether the works council has agreed, and which areas must never be filmed. The main guidance is the joint paper of the German regulators (the

Datenschutzkonferenz, DSK): the *Orientierungshilfe Videoüberwachung durch nicht-öffentliche Stellen* (guidance on video surveillance by private bodies, as of 17 July 2020) (DSK).

The legal basis: an unsettled point

Section 26 BDSG. The Federal Data Protection Act (BDSG) has its own rule for staff data, section 26. Its first sentence says staff data *"dürfen für Zwecke des Beschäftigungsverhältnisses verarbeitet werden, wenn dies [...] erforderlich ist"* (BDSG § 26(1)) (may be processed for the purposes of the employment where necessary). In 2023 the EU Court of Justice (case C-34/21) ruled on a Hesse rule worded the same way. The Hesse regulator concluded that *"[...] § 26 Abs. 1 Satz 1 BDSG sind voraussichtlich nicht mit Art. 88 DS-GVO vereinbar"* (Hesse data protection regulator (HBDI), Handreichung of 25 April 2023, part V) (section 26(1) sentence 1 is probably not compatible with Article 88 GDPR). The text of section 26 on gesetze-im-internet.de has not changed. Whether employers can still rely on it is therefore unsettled. Fino has not checked whether every German regulator shares the Hesse view.

Article 6(1)(f) GDPR. Where staff are filmed only as a side effect, for example a camera over the shop floor, the DSK assesses the cameras under the legitimate-interest rule of Article 6(1)(f). If staff are the focus or are filmed all the time, the DSK says the stricter employment rules of Article 88 GDPR with section 26 BDSG apply (DSK guidance, sections 5.1.5 and 5.1.6).

Section 4 BDSG. Section 4 BDSG regulates video surveillance of publicly accessible spaces. Its reach for private employers is disputed. The German regulators state that they *"wenden [...] § 4 BDSG nicht als Rechtsgrundlage für Videoüberwachungen durch Privatpersonen oder Unternehmen an"* (DSK guidance, footnote 8) (do not apply section 4 as the legal basis for surveillance by private persons or companies). They cite a 2019 judgment of the Federal Administrative Court (BVerwG, 6 C 2.18). Their earlier short paper of 2018 had left the question open: *"Ob und in welchem Umfang diese Regelung aufgrund des Anwendungsvorrangs der DS-GVO angewendet werden kann, bleibt einer Entscheidung im jeweiligen konkreten Einzelfall vorbehalten"* (DSK Kurzpapier Nr. 15). The section itself is still in force (BDSG § 4). Its paragraph 2 asks that the fact of surveillance and the controller's name and contact details be made recognisable at the earliest possible point; the sign in Part 2 does that in any case.

LINE	WHAT IT SAYS	YES	NO	?
BetrVG § 87(1) no. 6 Betriebsverfassungsgesetz § 87	If there is a works council, it has agreed. The works council co-decides on the *"Einführung und Anwendung von technischen Einrichtungen, die dazu bestimmt sind, das Verhalten oder die Leistung der Arbeitnehmer zu überwachen"* (BetrVG § 87(1) no. 6). If no agreement is reached, the conciliation board decides (§ 87(2)).	☐	☐	☐
DSK guidance 5.1.4 DSK, Orientierungshilfe Videoüberwachung, 5.1.4	If there is no works council, written internal rules govern the cameras. The DSK says the employer should then regulate them, for example through data-protection-compliant service instructions.	☐	☐	☐
DSK guidance 5.1.1 DSK, Orientierungshilfe Videoüberwachung, 5.1.1	No camera checks work performance. The DSK says: *"Kameras sind nicht erlaubt, wenn damit die Arbeitsleistung, Sorgfalt und Effizienz von Beschäftigten kontrolliert werden soll"* (DSK guidance, 5.1.1).	☐	☐	☐
DSK guidance 5.1.1 DSK, Orientierungshilfe Videoüberwachung, 5.1.1	No camera covers changing rooms, toilets, break rooms, social or rest rooms, and permanent workplaces are not filmed as a rule. The DSK calls cameras in such sensitive areas unlawful (*"unzulässig"*).	☐	☐	☐
BDSG § 26(1) sentence 2 BDSG § 26; DSK guidance 5.1.3	No hidden camera is used to find a suspected offender unless the conditions of section 26(1) sentence 2 are met: documented facts that point to an offence, necessity, and no overriding interest of the employee. The DSK adds that permanent surveillance cannot rest on this rule.	☐	☐	☐

LINE	WHAT IT SAYS	YES	NO	?
Art. 88 GDPR; BDSG § 26(4) DSK guidance 5.1.4; BDSG § 26(4)	If a works agreement is the legal basis, it contains the safeguards of Article 88(2) GDPR. The DSK adds that the agreement should make clear that performance control is excluded.	☐	☐	☐
DSK guidance 4.2 DSK, Orientierungshilfe Videoüberwachung, 4.2	Sound recording is switched off. The DSK warns that a camera with an audio function *"kann dies unter den Straftatbestand des § 201 Absatz 1 und Absatz 2 Strafgesetzbuch fallen"* (DSK guidance, 4.2) (may be a criminal offence).	☐	☐	☐
DSK guidance 2.1 DSK, Orientierungshilfe Videoüberwachung, 2.1	The purpose of each camera is written down and entered in the record of processing. The DSK says the purposes *"sind für jede einzelne Kamera schriftlich zu dokumentieren"* (DSK guidance, 2.1).	☐	☐	☐
Art. 35 GDPR; DSK 3.4.3 DSK, Orientierungshilfe Videoüberwachung, 3.4.3	A DPIA has been done or screened. The DSK names the monitoring of a specially protected group, *"Beschäftigte, Kinder, etc."* (DSK guidance, 3.4.3), as one source of high risk.	☐	☐	☐

Consent is not a workable basis. The DSK says employees *"willigen [...] regelmäßig nicht freiwillig ein"* (DSK guidance, 5.1.2) in their own camera surveillance (do not, as a rule, consent freely). The EDPB says the same: *"in most cases employers should not rely on consent"* (EDPB Guidelines 3/2019, paragraph 47).

Part 2. The first layer: the sign

The EDPB says the sign should be placed so that people can recognise the surveillance *"before entering the monitored area (approximately at eye level)"* (EDPB Guidelines 3/2019, paragraph 113). The exact camera position need not be shown, as long as it is clear which areas are filmed.

On content, the EDPB says the sign should give *"the details of the purposes of processing, the identity of controller and the existence of the rights of the data subject, together with information on the greatest impacts of the processing"* (EDPB Guidelines 3/2019, paragraph 114). The controller is the organisation that decides why and how the cameras are used. The sign must also say where the full notice is. Anything that could surprise people belongs on the sign, such as passing footage to others and the storage period. Otherwise, says the EDPB, people *"should be able to trust that there is solely a live monitoring"* (EDPB Guidelines 3/2019, paragraph 115).

Print the sign below at A4 or larger, put it before the first camera, and add a camera symbol. Fill in every field. Leave out the DPO line only if no data protection officer is appointed.

Video surveillance

This area is filmed by CCTV cameras.

Controller: NAME OF THE ORGANISATION, ADDRESS, PHONE OR EMAIL

Data protection officer: NAME OR ROLE OF THE DPO, EMAIL

Purposes: SPECIFIC PURPOSES

Legal basis: LEGAL BASIS. Legitimate interest: INTEREST PURSUED

Recordings are kept for NUMBER hours, then deleted automatically, unless an incident needs them longer.

Footage may be passed to: RECIPIENTS

You have the right to access your data, to ask for erasure or restriction, and to object, and the right to complain to a supervisory authority.

Full information: WHERE THE FULL NOTICE IS

Examples for the sign: purposes such as protecting the warehouse against theft and break-ins; legal basis such as Article 6(1)(f) GDPR; interest such as securing evidence of theft; recipients such as the police on request or our insurer; the full notice at reception, on the notice board at the entrance, or at a web address or QR code.

ITALY

Italy: the sign

The Garante says people *"devono sempre essere informati (ex art. 13 del Regolamento) che stanno per accedere in una zona videosorvegliata"* (Garante FAQ no. 3) (must always be told they are about to enter a filmed area), and that *"L'informativa va collocata prima di entrare nella zona sorvegliata"* (Garante FAQ no. 4).

The Garante publishes a simplified sign model, labelled as based on the EDPB Guidelines 3/2019 (*"Modello semplificato cartello videosorveglianza"*, linked from FAQ no. 4). Its boxes are: who records, the DPO's contact details where applicable, how long images are kept, the purpose, whom to contact to access data and exercise rights, and where the full notice is available. The sign above covers each box.

The Garante's 2010 provision adds that the sign must stay *"chiaramente visibile in ogni condizione di illuminazione ambientale, anche quando il sistema di videosorveglianza sia eventualmente attivo in orario notturno"* (Garante, provision of 8 April 2010, point 3.1) (clearly visible in all light conditions, also at night). Several signs may be needed where there are several cameras.

GERMANY

Germany: the sign

The DSK lists what the first-layer sign must show: the fact of surveillance (a camera symbol); the identity and contact details of the controller and of any representative; the contact details of the company data protection officer where one is appointed; the purposes and legal basis in key words; the legitimate interest where Article 6(1)(f) is used; where relevant, the storage period; and a pointer to the further information (in particular the right of access, the right to complain and any recipients) and how to get it (DSK guidance, section 3.3 and annex 1, DSK).

State regulators publish ready-made signs and full notices, for example Saxony (sign, full notice), Saxony-Anhalt (sign, full notice) and Bavaria (sign, full notice). They differ on print size: the Saxony sign asks for at least DIN A3, the Bavarian and Saxony-Anhalt signs for at least DIN A4. For the full notice, Saxony and Bavaria ask for at least DIN A3 and Saxony-Anhalt for at least DIN A4.

What the second layer must contain

The full notice must be easy to reach, for example at reception or on a poster. The EDPB says *"It should be possible to access the second layer information without entering the surveyed area"* (EDPB Guidelines 3/2019, paragraph 117), and that, however it is given, *"it must contain all that is mandatory under Article 13 GDPR"* (EDPB Guidelines 3/2019, paragraph 117). Part 3 is that full notice.

Part 3. The second layer: the full privacy notice

Each item below starts with what Article 13 requires and what to write, then gives the clause text. The clause text speaks to the reader as "you".

Title to print: Privacy notice: video surveillance at NAME OF THE SITE, for employees and visitors. Version DATE.

1. Who is responsible

Article 13(1)(a) requires *"the identity and the contact details of the controller"*. Write the legal name of the company (for example, Example company Ltd), its postal address and a phone number or email that is answered. Add the EU representative only if the controller is outside the EU.

1 The controller for the video surveillance at NAME AND ADDRESS OF THE SITE is LEGAL NAME OF THE ORGANISATION, POSTAL ADDRESS, PHONE, EMAIL.

Art. 13(1)(a) GDPR

2. The data protection officer

Article 13(1)(b) requires *"the contact details of the data protection officer, where applicable"*. A data protection officer (DPO) is the person an organisation appoints to advise on and monitor data protection. Write a contact that reaches the DPO directly. The Saxony model warns not to put the regulator's address here.

2 You can contact our data protection officer at NAME OR ROLE, POSTAL ADDRESS, EMAIL.

Art. 13(1)(b) GDPR

3. Purposes and legal basis

Article 13(1)(c) requires *"the purposes of the processing [...] as well as the legal basis for the processing"*. Write one purpose per group of cameras, as precisely as you can. The EDPB says *"Video surveillance based on the mere purpose of "safety" or "for your safety" is not sufficiently specific"* (EDPB Guidelines 3/2019, paragraph 15). The legal basis is the GDPR rule that allows the processing; write the one your assessment chose.

3.1 We use cameras for these purposes: PURPOSE 1; PURPOSE 2. The cameras cover AREAS COVERED. They do not cover AREAS EXCLUDED.

Art. 13(1)(c) GDPR

Examples: purposes such as protecting stock in the warehouse against theft outside opening hours, or protecting staff at the cash desk against robbery; areas covered such as the entrance, car park and warehouse; areas excluded such as changing rooms, toilets and the break room.

3.2 The legal basis is LEGAL BASIS.

Art. 13(1)(c) and 6(1) GDPR

For example: Article 6(1)(f) GDPR, our legitimate interest.

ITALY

Italy: add to the purposes clause

3.3 (IT) Where the cameras may also film employees, they were installed under UNION AGREEMENT OR INL AUTHORISATION, WITH DATE AND REFERENCE, as Article 4(1) of Law 300/1970 requires.

Art. 4(1) Law 300/1970; Art. 114 Codice privacy

Write either the agreement with the workplace union representatives and its date, or the authorisation of the Ispettorato nazionale del lavoro with its office, reference number and date.

GERMANY

Germany: add to the purposes clause

3.3 (DE) The cameras are not used to monitor the performance or behaviour of employees. The use of the cameras is governed by WORKS AGREEMENT AND ITS DATE.

BetrVG § 87(1) no. 6; DSK guidance 5.1.1 and 5.1.4

Keep the second sentence only if there is a works agreement on video surveillance.

4. Legitimate interests

Article 13(1)(d) applies only where the legal basis is Article 6(1)(f), the legitimate-interest rule. It requires *"the legitimate interests pursued by the controller or by a third party"*. Write the interest more concretely than the purpose. The Saxony model gives examples such as deterring offenders, clearing up offences and securing evidence, and preventing theft, vandalism and break-ins (Saxony full notice).

4 Our legitimate interests are LEGITIMATE INTERESTS.

Art. 13(1)(d) GDPR

For example: deterring theft and break-ins, and securing evidence if an offence or damage occurs.

5. Recipients

Article 13(1)(e) requires *"the recipients or categories of recipients of the personal data, if any"*. Write who may receive footage: the company that maintains or hosts the system (a processor, which works on the controller's instructions under Article 28), and those who receive footage after an incident. The Saxony model treats only outside recipients as recipients and gives the examples of prosecuting authorities, insurers and lawyers.

5 Footage is seen only by ROLES ALLOWED TO VIEW. The system is maintained by NAME OF THE SERVICE PROVIDER, which acts on our instructions under a processing contract. If an incident occurs, we may pass the relevant footage to RECIPIENTS AFTER AN INCIDENT.

Art. 13(1)(e) GDPR

For example: roles such as the site security manager and the managing director; recipients after an incident such as the police or public prosecutor, our insurer or our lawyer.

6. Transfers outside the EU

Article 13(1)(f) requires, *"where applicable"*, the fact of a transfer to a country outside the EU and the safeguard used. Check where cloud recordings and remote-access servers are located. If they stay in the EU, say so.

6 Option A: Recordings are stored in the EU and are not transferred outside it. Option B: Recordings are stored by `PROVIDER` in `COUNTRY`. The transfer is based on `ADEQUACY DECISION OR STANDARD CONTRACTUAL CLAUSES`; you can get a copy from `CONTACT`.

Art. 13(1)(f) GDPR

Keep option A or option B and delete the other.

7. How long recordings are kept

Article 13(2)(a) requires *"the period for which the personal data will be stored, or if that is not possible, the criteria used to determine that period"*. Write a fixed period in hours and the rule for keeping a clip longer after an incident. The EDPB says damage is usually found within one or two days, and *"The longer the storage period set (especially when beyond 72 hours), the more argumentation for the legitimacy of the purpose and the necessity of storage has to be provided"* (EDPB Guidelines 3/2019, paragraph 121).

7 Recordings are deleted automatically after `NUMBER OF HOURS` hours. When the site is closed for more than one day, recordings are kept until `NUMBER OF HOURS` hours after it reopens. If an incident is found within that time, we keep only the relevant clip until `END POINT FOR KEEPING A CLIP`, and then delete it.

Art. 13(2)(a) GDPR

Keep the second sentence only if a longer period applies at weekends or holidays. End point, for example: the incident is closed, or any legal proceedings end.

ITALY

Italy: retention

The Garante's current FAQ leaves the period to the controller: *"spetta al titolare del trattamento individuare i tempi di conservazione delle immagini"* (Garante FAQ no. 5). It repeats the EDPB point that periods beyond 72 hours need stronger reasons, and gives the EDPB example of 24 hours for a small shop. Its older 2010 provision set a limit of a few hours or at most 24 hours, with up to a week in special cases and a prior check by the Garante for anything longer (point 3.4). That provision was adopted before the GDPR, under the earlier version of the privacy code.

GERMANY

Germany: retention

The two DSK papers give different figures. The 2020 guidance says *"eine Speicherdauer von 72 Stunden in der Regel zulässig ist"* (DSK guidance, 4.1) (72 hours is generally allowed) and that longer periods need more justification. The 2018 short paper said that deletion *"sollte demnach grundsätzlich, wie bisher auch, nach 48 Stunden"* (DSK Kurzpapier Nr. 15) take place (after 48 hours as a rule). The 2020 guidance is the later text.

8. Your rights

Article 13(2)(b) requires the existence of the rights of access, rectification, erasure, restriction, objection and data portability. Write the rights that apply and how to use them. With CCTV based on legitimate interest, the right to object (Article 21) applies. The right to data portability (Article 20) applies only to processing based on consent or a contract, so it does not normally apply here. A reply is due within one month (Article 12(3)).

8 You have the right to ask us for access to images of you (Article 15), to have inaccurate data about you corrected (Article 16), and to ask for erasure (Article 17) or restriction of their use (Article 18). You can object at any time, on grounds relating to your particular situation, to the use of cameras based on our legitimate interest (Article 21). To use these rights, write to CONTACT. Tell us the date, time and place, so that we can find the images before they are deleted. We reply within one month.

Art. 13(2)(b), 12(3), 15 to 21 GDPR

9. Consent

Article 13(2)(c) applies only where the legal basis is consent. Workplace CCTV does not normally rest on consent (see Part 1). Write the clause only if consent really is the basis.

9 Option A: We do not rely on your consent for the video surveillance. Option B: You can withdraw your consent at any time by writing to CONTACT. This does not affect the use of images before you withdrew it.

Art. 13(2)(c) GDPR

Option A is the normal case. Use option B only if consent really is the legal basis.

10. The right to complain

Article 13(2)(d) requires *"the right to lodge a complaint with a supervisory authority"*. A supervisory authority is a national data protection regulator. Under Article 77 a person may complain in particular in the country where they live, work, or where the infringement took place.

10 If you think we use your images unlawfully, you can complain to a data protection supervisory authority, in particular in the EU country where you live, where you work, or where the infringement took place. The authority for our site is NAME AND ADDRESS OF THE AUTHORITY.

Art. 13(2)(d) and 77 GDPR

ITALY

Italy: the authority

The Garante's complaint page gives the address *Garante per la protezione dei dati personali, Piazza Venezia, 11 - 00187 Roma* and the certified email (PEC) address *protocollo@pec.gpdp.it* (Garante, complaint page).

GERMANY

Germany: the authority

For private bodies the competent authority is the regulator of the federal state (Land) where the controller is established. The Saxony model notes this and links the federal commissioner's list of state authorities (federal commissioner's list).

11. Whether the data are required

Article 13(2)(e) requires saying whether providing the data is a legal or contractual requirement and what happens if the person does not provide them. Write what happens in practice: there is no duty to be filmed, but the filmed areas cannot be used without being filmed.

11 No law or contract obliges you to provide images of yourself. The cameras record everyone who enters the areas listed in clause 3.1. Visitors who do not want to be filmed can ALTERNATIVE FOR VISITORS.

Art. 13(2)(e) GDPR

For example: ask at reception, outside the filmed area. Delete the last sentence if there is no alternative.

12. Automated decisions

Article 13(2)(f) requires saying whether there is automated decision-making, including profiling (Article 22). A plain recording system makes no decisions. If the system analyses images automatically (for example face recognition or behaviour detection), stop and reassess: the DSK says face recognition for identification needs a DPIA in advance and can fall under the strict rules for special categories of data (Article 9) (DSK guidance, 3.4.2).

12 The cameras do not make automated decisions about you, and we do not use them for profiling or face recognition.

Art. 13(2)(f) GDPR

13. Information for employees

ITALY

Italy: what employees must also be told

Article 4(3) of the Workers' Statute allows information collected through such tools to be used for all purposes connected with employment, but only if the worker is given *"adeguata informazione delle modalità d'uso degli strumenti e di effettuazione dei controlli"* (Law 300/1970, Art. 4(3)) (adequate information on how the tools are used and how checks are made), and in line with the privacy code. Write how footage is accessed and whether it may be used in disciplinary matters. If the union agreement or authorisation sets limits, repeat them.

13 (IT) Footage is viewed only WHEN FOOTAGE IS VIEWED, by ROLES, ON SITE OR REMOTE. Every access to recordings is logged. Option A: Footage may be used for purposes connected with your employment, including disciplinary matters, within the limits of the agreement or authorisation. Option B: Footage is not used to assess your work or for disciplinary matters.

Art. 4(1) and 4(3) Law 300/1970

When, for example: after an incident is reported. Remote viewing only as the agreement or authorisation allows. Keep option A or option B and delete the other.

GERMANY

Germany: what employees must also be told

Write how access to recordings is controlled and what the works agreement allows. Where a works agreement exists, the DSK expects it to cover the subject and purpose of the processing, the data, the recipients, the rights, deletion periods and the access concept (DSK guidance, 5.1.4).

13 (DE) Recordings are viewed only WHEN RECORDINGS ARE VIEWED, by ROLES, together with a member of the works council. Every access is logged. Recordings are not used to monitor your performance.

BetrVG § 87(1) no. 6; DSK guidance 5.1.4

When, for example: after an incident is reported. Delete "together with a member of the works council" unless the works agreement provides for it.

14. Changes of purpose

Article 13(3) requires new information before footage is used for a different purpose.

14 If we want to use footage for a purpose not listed in this notice, we will tell you before we do so.

Art. 13(3) GDPR

What regulators decided

Fined, and Article 13 among the breaches

A car rental agency's sign did not name the controller or state the retention period, and no full notice was available: €800, Italian Data Protection Authority (Garante), 2026 (2026/IT/152). The national metrology institute ran CCTV in test mode with 18 cameras instead of the 10 agreed with the unions, without employee notices, with a deficient first-level sign, no second-level notice and no DPIA: €10,000, Italian Data Protection Authority (Garante), 2026; Articles 5, 6, 12, 13, 35 and 88 among the breaches (2026/IT/146).

Fined, and Article 88 among the breaches

H&M used CCTV in several Italian stores without completing the union agreement or labour inspectorate procedure under Article 4 of the Workers' Statute, and in some stores beyond the authorisation's limits: €50,000, Garante per la protezione dei dati personali (Italy), 2023 (2023/IT/121).

Why this matters

Lower Saxony data protection authority: video surveillance of employees without a legal basis, including workplaces and break areas. Fined €10.4 million in 2020 (announced 8 January 2021); reduced by the courts to €900,000 (final, December 2025) (2021/DE/051). The same authority's 2025 annual report lists a €29,000 fine against a company that processed meat and monitored its employees; the report says the decision is not yet final (2025/DE/043). The Saxony data protection authority's 2025 annual report describes a €7,500 fine against a restaurant business whose cameras filmed guests, staff and passers-by around the clock, without proper notice of the surveillance (2025/DE/051).

Decision data come from enforcementtracker.com (provided by CMS) and GDPRhub (noyb), under CC BY-NC-SA 4.0 (https://creativecommons.org/licenses/by-nc-sa/4.0/), and from regulators' own publications; each decision page on Fino carries the details.

The German pages do not list which GDPR articles were involved, so these cases are not shown as Article 13 or Article 88 cases.

Sources

GDPR, Articles 5, 6, 9, 12, 13, 15 to 22, 28, 35, 77, 88 (Fino copy of the EUR-Lex text) • Used for: Every Article 13 item, rights, complaint, DPIA, employment rule

EDPB Guidelines 3/2019 on processing of personal data through video devices, version 2.0 • Used for: Layered information, sign content and position, retention, purposes, consent at work

Law 300/1970 (Statuto dei lavoratori), Article 4, Normattiva • Used for: Italy: purposes, union agreement or INL authorisation, information to workers

Legislative Decree 196/2003 (Codice privacy), Article 114, Normattiva • Used for: Italy: link between privacy law and Article 4

Legislative Decree 196/2003 (Codice privacy), Article 171, Normattiva • Used for: Italy: criminal penalty for breaching Article 4(1)

Garante, FAQ on video surveillance • Used for: Italy: signs, retention, DPIA, employers, dummy cameras, no Garante permit

Garante, video surveillance provision of 8 April 2010 (doc. web 1712680) • Used for: Italy: sign visibility, ban on filming work performance, old retention limits

Garante, DPIA list, Allegato 1 to provision 467 of 11 October 2018 (doc. web 9059358) • Used for: Italy: DPIA item 5

Garante, decision of 28 May 2026 (doc. web 10259916) • Used for: Italy: Article 4 compliance as a condition of lawfulness

Garante, complaint page (doc. web 4535524) • Used for: Italy: complaint address

Ispettorato nazionale del lavoro, circular 5 of 19 February 2018 • Used for: Italy: remote viewing, access logs, outdoor work areas

BDSG § 26, gesetze-im-internet.de • Used for: Germany: employment rule, hidden surveillance, works agreements

BDSG § 4, gesetze-im-internet.de • Used for: Germany: video surveillance of publicly accessible spaces

BetrVG § 87, gesetze-im-internet.de • Used for: Germany: works council co-determination

DSK, Orientierungshilfe Videoüberwachung durch nicht-öffentliche Stellen (as of 17 July 2020) • Used for: Germany: section 4 BDSG, employees, sign content, retention, audio, DPIA

DSK, Kurzpapier Nr. 15, Videoüberwachung nach der DS-GVO (as of 17 December 2018) • Used for: Germany: 48-hour figure, earlier view on section 4 BDSG

HBDI (Hesse), Handreichung on employee data after CJEU case C-34/21 (25 April 2023) • Used for: Germany: doubt over section 26(1) BDSG

Saxony data protection authority, sign and full notice models for video surveillance • Used for: Germany: sign fields, examples, recipients, authority, print size

Saxony-Anhalt data protection authority, sign model for video surveillance • Used for: Germany: sign fields, print size

Bavarian data protection authority (BayLDA), sign model for video surveillance • Used for: Germany: sign fields, print size

Federal Commissioner for Data Protection (BfDI), list of state data protection authorities • Used for: Germany: competent authority